TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

"Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature's directive that 'all parties shall cooperate in bringing the action to trial[.]' (Code Civ. Proc., § 583.130.)" (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

<u>Hearing Date: August 24, 2026 at 1:30 pm</u>
Rulings Posted: 8/21/26 at 5 pm

#	Case Name	Tentative
301	*Mann vs. Knuppel*	Muscarella requests dismissal pursuant to Code of Civil Procedure section 583.420 based on Plaintiff's alleged inexcusable failure to prosecute this case. Muscarella contends because of the delays in the pleadings caused by Plaintiff's dilatory conduct and the numerous discovery motions caused by Plaintiff's failure to comply with the discovery process, Muscarella has not been able to take Plaintiff's deposition. He also states he is not able to file his motion for summary judgment until Plaintiff's deposition is complete. Plaintiff's opposition confirms Plaintiff sat for his [second] deposition on August 11, 2026. (Schneider

		Decl., ¶ 2.) The court's records also confirm since this motion was filed the parties appear actively engaged in discovery. The parties filed Joint Letter Briefs, attended informal discovery conferences, and withdrew pending discovery motions after Plaintiff served discovery responses. (See ROA 936, 938, 940, 942, 952, 961, 962.) Under these circumstances, dismissal does not appear warranted. Muscarella also failed to show that the delay in taking Plaintiff's deposition was caused solely by Plaintiff's dilatory conduct. Muscarella simply asserts he could not take the deposition until the pleadings were in order. But no evidence is offered as to any attempts Muscarella made to take Plaintiff's deposition at an earlier date or showing Plaintiff refused to sit for his deposition at an earlier time. Moreover, Plaintiff filed his operative SAC in December 2024. The pleadings have thus been in order for the past 18 months. Muscarella did not file a reply for this motion and thus offered no argument to refute Plaintiff's assertion that the case has been actively litigated. For the same reasons, Muscarella failed to support his alternative request for a trial continuance. Plaintiff shall give notice.
302	*Anderson vs. Bohm Wildish & Matsen, LLP*	Before the court is a demurrer filed by defendants Bohm, Wildish & Matsen, LLP, and Jennifer Wilson (Defendants together) to plaintiff Gary Anderson's (Plaintiff) First Amended Complaint (FAC). The demurrer is **SUSTAINED** with leave to amend as described below. Plaintiff has leave to file an amended complaint by 9/11/26. The demurrer is sustained with leave to amend as to cause of action number one. (Code of Civil

		Procedure section 430.10, subdivision (e).) An attorney only has a professional duty as to its client. (*Gordon v. Ervin Cohen & Jessup LLP* (2023) 88 Cal. App. 5th 543, 554.) Although a probate attorney may owe a duty to intended beneficiaries of the document prepared by the attorney, *id.*, at 554-56, Plaintiff has specifically alleged he was not an intended beneficiary under that trust. As such, Plaintiff has not alleged sufficient facts to support this cause of action. The demurrer is sustained with leave to amend as to cause of action number two. (Code Civ. Proc., § 430.10, subd. (e).) Again, Plaintiff has not alleged any fiduciary relationship between Plaintiff and Defendants or the ability of Plaintiff to bring a lawsuit against Defendants on behalf of decedent or the estate. The demurrer is sustained without leave to amend as to cause of action number three. (Code Civ. Proc., § 430.10, subds. (e), (f).) There is no cause of action for 'willful misconduct and reckless disregard of professional duty.' To the extent this cause of action is an attempt at professional negligence, the same analysis under cause of action number one applies. To the extent this is a request for punitive damages, punitive damages are a remedy and not a COA. (*McLaughlin v. Nat'l Union Fire Ins. Co.* (1994) 23 Cal. App. 4th 1132, 1163.) The demurrer is sustained with leave to amend as to cause of action number three. (Code Civ. Proc., § 430.10, subds. (e), (f).) Again, Plaintiff has not alleged any fiduciary relationship between Plaintiff and Defendants, the ability of Plaintiff to bring a lawsuit against Defendants on behalf of decedent or the estate, or a duty owed by Defendants to Plaintiff.

		The 8/24/26 CMC is continued to 12/7/26 at 8:45am in Dept. C24. Defendants shall give notice.
304	*Cardenas vs. Index Architecture and Designing L.L.C.*	The motion of specially appearing defendant Vasken Tatarian, individually and as Trustee of the 2021 Sarkis Tatarian Revocable Trust (Vasken), to quash service of summons by publication is GRANTED as set forth below. Vasken's request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452(d); *Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264.) Vasken's evidentiary objections are OVERRULED. As an initial matter, the argument of plaintiff Cayetano Cardenas, an individual doing business as CR Steel Fabricators & Erectors Co (Plaintiff), that the notice of motion does not comply with Code of Civil Procedure section 418.10, subdivision (b), is not well-taken. In the reply, Vasken confirmed the August 24, 2026 hearing date was the date provided to him by the court's own motion hearing reservation system. (Tatarian Reply Decl., ¶ 2; Request for Judicial Notice, Ex. A.) As to the merits, in accordance with Code of Civil Procedure section 415.50, subdivision (b), the court's December 11, 2025 order for publication required a copy of the summons and complaint to be mailed to Vasken if his address was ascertained before expiration of the time prescribed for publication. (See ROA 119.) The application for publication confirms Vasken's address was known to Plaintiff before expiration of the time prescribed for publication and indeed prior to the application

		being filed with the court. (See ROA 117.) Plaintiff failed to file a proof of service showing the summons and complaint were mailed to Vasken as required by section 415.50, subdivision (b). Service by publication was thus defective for failure to comply with the statutory requirements for such service. In the Opposition, Plaintiff essentially concedes service was defective as it states "Plaintiff does not seek to rely on that completed publication service to establish personal jurisdiction" over Vasken. The service by publication is therefore QUASHED. In terms of the publication order, the application for publication confirms Plaintiff has ascertained Vasken's current residential address and two rental property addresses for Vasken. (See ROA 117.) The application, however, made no showing Plaintiff could not, with reasonable diligence, serve Vasken by mail with acknowledgment of receipt under Code of Civil Procedure section 415.30, at any of these addresses. Plaintiff thus failed to show Vasken could not reasonably be served "in another manner" specified in the Code of Civil Procedure. (Code Civ. Proc., § 415.50(a); Transamerica Title Ins. Co. v. Hendrix (1995) 34 Cal.App.4th 740, 745.) The court will therefore VACATE its December 11, 2025 publication order. Vasken's request that Plaintiff be precluded from further attempting service of summons is unsupported by the authorities cited and is therefore DENIED. The court notes this matter has been pending for almost two years without proper service on Vasken. Code of Civil Procedure section 583.420 provides for discretionary dismissal if "[s]ervice is not made within two years after the action is commenced

		against the defendant." (Code Civ. Proc., § 583.420(a)(1).) The court thus deems it appropriate to set an order to show cause regarding service on Vasken. An Order to Show Cause re: why the complaint as to Vasken Tatarian, in his individual capacity and as trustee, should not be dismissed for failure to properly serve him within two years after the action was commenced, is scheduled for 10/5/26 at 8:45am in Dept. C24. The 8/24/26 CMC is continued to 10/5/26 at 8:45am. The clerk of the court shall give notice of this ruling.
305	*Riazadi vs. Joshi*	Before the court is a demurrer filed by defendants Vinit Joshi (Joshi individually) and Global Implant Dentistry (Global individually; Defendants together) to plaintiff Nuri Riazadi's (Riazadi or Plaintiff) First Amended Complaint (FAC). The demurrer is **SUSTAINED**. As to causes of action numbers 1 – 7, those causes of action appear barred by the doctrine of res judicata based upon the entry of judgment by default in the matter of Orange County Superior Court Case No. 30-2024-01380242-CU-FR-CJC (Global Case). (Demurrer, Request to Take Judicial Notice, Exs. A and D.) The claims in the Global Case and the present matter are identical, final judgment has been entered in the Global Case, and Plaintiff and Defendants were all parties to both actions. (*Boeken v. Philip Morris USA, Inc*. (2010) 48 Cal. 4th 788, 797.) The original complaint also sought payments which were billed by non-party 3Dex for services it allegedly rendered, however 3Dex is not a party to this action. Although Plaintiff now alleges 3Dex was not registered in any state at the time the oral

		contract were entered (FAC ¶ 8), there are allegations throughout the FAC indicating Plaintiff alleged he conducted work through 3Dex (FAC ¶ 11), Plaintiff assigned alternatively either his own employees or 3Dex employees to complete the work agreed upon (FAC ¶¶ 12-13), invoices to Defendant were billed by 3Dex. (FAC ¶¶ 14, 16), and 3Dex was defamed by Defendants (FAC ¶¶ 68-69.) Plaintiff has not pled sufficient facts to support the legal capacity to sue for any alleged breach of contract between Defendants and 3Dex or related damages. (Bus. & Prof. Code § 17918.) As 3Dex appears to be a real party in interest which is not a party to this action, the demurrer to causes of action numbers 1 – 8 is sustained pursuant to Code of Civil Procedure section 430.10, subdivisions (b) and (d). Plaintiff has also pled no new facts under almost any of the causes of action and this has failed to plead sufficient facts to support causes of action numbers 1 – 7. (Code of Civil Procedure section 430.10, subdivision (e).) Plaintiff did not properly plead a contract between Plaintiff and Defendants, damages, or duties owed by Defendants to Plaintiff. As to cause of action number 6, Plaintiff failed to plead sufficient fact to show Defendants ever acquired or misappropriated any "trade secrets" or what said "trade secrets" were. The demurrer is sustained with a final leave to amend as to each of the causes of action. Plaintiff is given leave to file an amended complaint by 9/11/26. Defendants' request to take judicial notice is granted pursuant to Evidence Code section 452, subdivision (d). The 8/24/26 CMC is continued to 12/7/26 at 8:45am in Dept. C24.

		Defense counsel shall give notice.
306	*Pollock vs. Laguna Niguel Investors No 1, LLC*	The motion by Laguna Niguel Investors No. 1, LLC (Laguna) to vacate the order granting Newmark Merrill Companies, Inc. (Newmark) leave to file a cross-complaint is DENIED. Here, the order Laguna seeks to vacate is the 3/13/26 Order entered pursuant to stipulation of the parties. (ROA 86.) At the time the stipulation and proposed order was submitted to the court, Laguna was not a party to the action and the only parties were the plaintiff, Patti Pollock, and Newmark. The stipulation was signed by all parties to the action. Although Laguna was not a party to the action, Newmark served a copy of the stipulation and proposed order on Laguna on 3/11/26. Laguna did not file any objection to the stipulation. Laguna argues the order should be vacated pursuant to CCP §473(d) which allows the court to set aside a "void order." This argument lacks merit. Further, Laguna mistakenly argues the stipulation was incomplete because it failed to disclose there had been a joint dismissal of cross-complaints earlier in the action. (Howell Decl. ¶11.) It was the Court that entered the dismissal. Laguna's argument that Newmark is equitably estopped from pursuing the cross-complaint because of separate agreements between the two companies does not warrant vacating the order. Newmark shall give notice.
307	*Delgadillo vs. General Motors, LLC*	Plaintiff Olivia Delgadillo's motion for attorney fees and costs is GRANTED in the reduced amount of $9,880 in fees and $1,679.88 in costs, for a total amount of $11,659.88. (Civ. Code § 1794, subd. (d).)

		The Court approves the hourly rate of Derhartounian, but reduces the hourly rates of Storti, Hayes, Pascal and Lara to $350 and of Barry to $500, based on the type of work performed and/or lack of evidence of the attorney's level of skill and experience. The Court reduces time spent by Derhartouniar by 3.7 hours, Barry by 14.1 hours, and all other attorneys by 4.3 hours, which the Court finds excessive, inflated or not actually incurred; all other time spent is approved. (See *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36 [standard for determining reasonableness of fees].) The Court declines to award a multiplier. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138 [purpose of fee enhancement].) The court continues the 8/24/26 OSC to 10/5/26 at 8:45am in Dept. C24. If the case is fully resolved, please file a dismissal at least 5 court days before the hearing. Plaintiff shall give notice.
308	*Stewart vs. Hyundai Motor America*	Defendant Hyundai Motor America's (Defendant) demurrer to the first amended complaint (FAC) of plaintiffs Gregory P. Stewart and Arleen S. Ramos (collectively, Plaintiffs) is **OVERRULED**. Defendant's motion to strike is **DENIED**. Defendant shall file an answer to the FAC within 20 days. **<u>Motion No. 1: Demurrer</u>** Defendant demurs to the second cause of action for violation of Civil Code section 1793.2, subdivision (b), the third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3), and the fifth cause of action for fraudulent inducement-concealment.

Second and Third Causes of Action

A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10.) "A complaint will be upheld so long as the pleading gives notice of the issues sufficient to enable preparation of a defense. [Citation.]" (*Thomas v. Regents of the University of California* (2023) 97 Cal.App.5th 587, 610-11.) (Internal quotations omitted.) " '[L]ess particularity [in pleading] is required when it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.' " (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50.)

The allegations in the FAC are sufficiently particularized to apprise Defendant of the nature and extent of Plaintiff's claims under the second and third causes of action. (See FAC ¶¶ 12-23, 34-39, 65-66, 70.) Defendant cites no authority requiring Plaintiffs to plead the level of detail Defendant seeks for these Song-Beverly claims.

Fifth Cause of Action for Fraudulent Inducement – Concealment

Defendant argues the fraud claim fails because: (1) it is not pled with the requisite specificity; (2) Plaintiffs fail to allege actual or justifiable reliance; (3) Plaintiffs fail to allege a direct transactional relationship giving rise to a duty to disclose on the part of Defendant; and (4) the claim is barred by the economic loss rule.

Specificity: Fraud claims must be pled with particularity. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1332.) However, "the requirement of specificity is relaxed when the allegations indicate that 'the defendant

		must necessarily possess full information concerning the facts of the controversy' . . . or when the facts lie more in the knowledge of the opposite party." (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158.) The allegations in the FAC are pled with sufficient specificity to support the fraud claim. (See FAC ¶¶ 77-89.) *Reliance:* The FAC adequately alleges actual and justifiable reliance on Defendant's omissions. (See FAC ¶¶ 80, 82-83, 87-89.) *Transactional Relationship:* Defendant relies on, among other cases, *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, in support of its argument that no transactional relationship between the parties is alleged. The court in *Bigler-Engler* held that " '[a] duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as '… parties entering into any kind of contractual arrangement.' [Citation.]" (*Bigler-Engler*, *supra*, 7 Cal.App.5th at p. 311). Here, Plaintiffs allege Defendant provided Plaintiffs a warranty regarding the Subject Vehicle, which was manufactured and/or distributed by Defendant. (FAC ¶¶ 6-7). This appears sufficient to allege a transactional relationship between the parties. *Economic Loss Rule:* Defendant's argument that the fraudulent inducement claim is barred by the economic loss rule is no longer compelling following the ruling in *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828, 843, wherein the court declined to apply the economic loss rule to a purchaser's fraudulent inducement by concealment claim. (*Dhital*, supra, 84 Cal.App.5th at 840-841.) Defendant points to *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 to support its argument that the economic loss rule bars Plaintiffs' fraud

		claim. *Rattagan*, however, dealt with whether, "[u]nder California law, a plaintiff may assert a cause of action for fraudulent concealment based on conduct occurring in the course of a contractual relationship." (*Rattagan*, supra, 17 Cal.5th at 45; see also *Moore v. American Honda Motor Co., Inc.* (N.D. Cal., Mar. 28, 2025, No. 5:23-CV-05011-BLF) 2025 WL 948114, at *7 [noting the distinction between *Rattagan* and *Dhital* and concluding *Rattagan* controls fraudulent concealment *within* contractual relationships, whereas *Dhital* controls fraudulent concealment *inducing* the formation of a contractual relationship.].) As such, the economic loss rule would not bar Plaintiffs' claim for fraudulent inducement-concealment. **<u>Motion No. 2: Motion to Strike</u>** Defendant contends Plaintiffs are not entitled to civil penalties or the remedies of restitution or replacement for a violation of Civil Code sections 1793.2(b) or (a)(3). Defendant cites *Gavaldon v. Daimler Chrysler Corp.* (2004) 32 Cal.4th 1246 in support of its argument. In *Gavaldon*, the California Supreme Court held Civil Code section 1794, which outlines the damages available to plaintiffs under the Song-Beverly Act, does not provide a replacement/restitution remedy for breach of a service contract. (*Gavaldon v. Daimler Chrysler Corp., supra,* 32 Cal.4th at 1262.) *Gavaldon* did not involve Civil Code sections 1793.2(b) or (a)(3), and the Court did not hold a plaintiff is not entitled to civil penalties or restitution/replacement for a violation of said sections. Defendant thus failed to show, at this stage, that these remedies are unrecoverable in connection with the second and third causes of action. Defendant also moves to strike the prayer for punitive damages. Because Plaintiffs' fraud cause

		of action remains viable, punitive damages may be recoverable pursuant to said claim. (Civ. Code § 3294(a).) The 8/24/26 CMC is continued to 10/5/26 at 8:45am. Plaintiff shall give notice.
310	*Santos vs. Acacio Fertility Center, Inc.*	Defendants Acacio Fertility Center, Inc., Brian David Acacio, M.D., Brian David M.D., APC and John Scodras, PhD's motion to admit counsel Kim M. Schmid to appear pro hac vice is GRANTED. Counsel has submitted a verified application that complies with the requirements of California Rules of Court, rule 9.40. The 8/24/26 CMC shall remain on calendar. Defendants shall give notice.
311	*Kerns vs. Burch*	The motion to compel arbitration filed by defendants Burch Shepard Family Law Group, APC and Robert Brett Burch (Defendants) is GRANTED. (Code Civ. Proc., § 1281.2.) Plaintiff Bryan Kerns shall submit his claims against the Defendants to binding arbitration pursuant to the arbitration agreement set forth in Paragraph 6(A) of the Attorney-Client Retainer Agreement attached as Exhibit A to the declaration of Robert Burch. Defendants met their burden to show a written arbitration agreement that covers plaintiff's claims. (See Code Civ. Proc., § 1281.2; *see also Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 [elements]; Ex. A; para. 6(A).) While plaintiff argues the Defendants never made a demand to arbitrate, "[t]he statute does not include a requirement that the petitioning party have made

		a demand for arbitration, only that the other party has refused to arbitrate. Arbitration can be refused without a formal demand ever having been made. [Plaintiff's] filing of a lawsuit rather than commencing arbitration proceedings as required by the agreement affirmatively establishes [Plaintiff's] refusal to arbitrate the controversy." (*Hyundai Amco Am., Inc. v. S3H, Inc.* (2014) 232 Cal. App. 4th 572, 577-578.) All of plaintiff's causes of action "arise[] out of" or are "in connection with" the Defendants' representation of plaintiff pursuant to the Attorney-Client Retainer Agreement. (Ex. A; *see EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1322.) Plaintiff did not meet his "heavy burden" to show defendants waived the right to compel arbitration. (*Saint Agnes Med. Ctr. v. PacificCare of Cal.* (2003) 31 Cal.4th 1187, 1195.) Plaintiff did not meet his burden of showing both procedural and substantive unconscionability. (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1246.) This action is STAYED pending completion of arbitration. (See Code Civ. Proc., § 1281.4.) The Case Management Conference currently on calendar for 8/31/26 is vacated. The court sets a status conference re binding arbitration for 6/1/27 at 8:45 am in Dept. C24. Parties shall submit a status report at least 5 court days before the next hearing. Defendants shall give notice